



The M&R Companies
M&R • NUARC • AMSCOMATIC

M&R SALES & SERVICE INC.

6200 W Howard St. - NILES, IL-60714 U.S.A
(847)967-4400 FAX:(847)967-9664 Sales:1-800-962-8883

*** ORDER ACKNOWLEDGEMENT ***

Order Acknowledgement Cover/Response Sheet

Customer: 33393 -- ROWBOAT CREATIVE

Order Numbers: 742823

Order Taker : Damian Rulka

Date: 26-OCT-15 09:22:47

Thank you for your recent order! Attached you will find an acknowledgement of your order placed with M&R Sales and Service, Inc. Please carefully check the items and specifications on this acknowledgement for accuracy, and then check one of the following:

☒ Yes! The itemized list is correct.

☐ No! The itemized list is not correct. Explanation of inaccuracies:

Note: The estimated Ship Date will be assigned 24-48 hours after you send M&R approval of your order acknowledgement, via return email or fax. Any and all changes must be communicated to M&R in writing.

No order will be given estimated ship date without approval of this acknowledgement.

The person approving the acknowledgement assumes full responsibility for the accuracy of the information included therein..

Signature:

Date:

10.27.15



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REMIT PAYMENTS TO:M&R Printing,P.O.Box 83024,Chicago,IL 60691-3010

WIRE TRANSFER TO:MB Financial Bank, 9550 W Higgins Rd, Rosemont, IL 60018

Account #0692-87740:ABA #071000343: Swift #MBFIUS44

Customer Number:33393

Bill to:

ROWBOAT CREATIVE
2649 N.KILDARE AVE.
CHICAGO, IL 60639
USA
Attn:JOE ZANGRILLI

Ship to:

ROWBOAT CREATIVE
2649 N.KILDARE AVE.
CHICAGO, IL 60639
USA
Attn:JOE ZANGRILLI

DATE	SHIPVIA	F.O.B	TERMS
21-OCT-2015	Pickup/Call Frt Collect	Glen Ellyn	Pay In Advance

CUSTOMER PO NUMBER	ORDER DATE	COMMENTS	OUR ORDER NUMBER
PROP59721	21-OCT-2015	Damian Rulka	742823

QUANTITY ORDERED	U.O.M	ITEM NUMBER	DESCRIPTION	UNIT PRICE	DISCOUNT	EXTENDED PRICE
1	EAC	CAY182220360	TAKE FLASH FROM STOCK ORDER # 742696, S/N 041391393C. THIS IS DEMO UNIT. DO NOT CRATE, CUSTOMER PICK UP. CAYENNE D QUARTZ FLASH 18X22 208/240V 3PH 60HZ UL - (TUNGSTEN BULBS) Gross Order Value Delivery and Handling Total Taxes Order Total (in USD)	3900.00	.0	3900.00 3900.00 .00 .00 3900.00
			THIS ORDER CANNOT BE SHIPPED SEE CREDIT DEPT.ENTERED BY:DR.Advance Payment Required			

Parts & Supplies Are Available Online at store.mrprint.com. Click here.



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Important! **Pre-Installation Checklist !**

Order No: 742823
Customer: ROWBOAT CREATIVE
Order Date: 21-OCT-15

Dear Valued Customer/Dealer:

Included here, with your Order Acknowledgement Package, is a

Pre-Installation Checklist.

This document is extremely important for **you** and **M&R**. It is a must. It assures that your equipment will be built to your specific requirements, and that the Installation of the equipment will proceed without delay or field modifications.

Also, that the Equipment Operation Teaching portion of the installation, maximizes all available time to get the most from your purchase. In addition, it will assist our Technicians in providing **Preventative Maintenance Procedures.**

If you require assistance in filling out any portion of this **Pre-Installation Checklist**, please contact:

Danuta Szostak @ 630-446-7172

As always, M&R is an easy call away at 1-800-483-8765. Ext. 172

When completed, please return to M&R via one of the venues listed below:

e-mail: danuta.szostak@mrprint.com

FAX: 630-858-4860

Mail: 1 N 372 Main Street, Glen Ellyn, Illinois 60137 Attn: Service Dept.

Your cooperation and assistance in this matter is greatly appreciated.

M&R Companies* (hereinafter referred to as "the Company" or "Seller")
TERMS AND CONDITIONS OF SALE

*DEFINITION: M&R means M&R Printing Equipment, Inc., M&R Sales and Service, NuArc Company, Amscomatic, Inc. and or any affiliates or subsidiaries of these companies.

1. Price Quotations

a. Unless otherwise agreed to in writing by M&R, all quotations expire thirty(30) days after the date of quotation. All prices quoted are valid only if Buyer's requested delivery date (including any change orders) is within six(6) months of the date on which the original order is placed.

b. Buyer agrees that its order constitutes a security agreement, under which Buyer grants to M&R a purchase money security interest in each product purchased by the Buyer hereunder for the amount of its purchase price, and M&R hereby reserves such security interest. In order to perfect M&R's security interest, Buyer agrees that (i) Buyer will execute any financing statements (e.g. UCC-1 forms) and amendments and supplements thereto, or other instruments that seller, as Secured Party, is required to file in compliance with the Commercial Code of any state, or any other law of the United States, and (ii) M&R may file such financing statements and Buyer's order, or a carbon photocopy or other reproduction of Buyer's Order, with the appropriate governmental authorities at any time, alone or with other documents that M&R determines to be necessary or desirable to perfect or protect the security interests created hereby. Payment in full of the purchase price of any product will release the security interest on that product.

2. Payment and Security Terms

- a. Payment is to be made according to the terms on the front side of this Proposal. Any late payments are subjected to a one and half percent (1 1/2%) interest charge per month.
- b. Buyer hereby grants and M&R reserves a purchase money security interest in each product purchased hereunder, and in any proceeds thereof, for the amount of its purchase price. Upon request by M&R buyer shall sign any document required to perfect such security interest. Payment in full of the purchase price of any product purchased hereunder shall release the security interest in that product.

3. Default

a. Upon a default payment, M&R may, at its election, without notice and without demand, do any one or more of the following, all of which are hereby authorized by Buyer: (i) declare all unpaid installments immediately due and payable; (ii) enter, with or without process of law, any premises where the products might be and without breach of the peace take possession of the products and store them on the said premises, without charge or liability to M&R therefore, or remove the products to such other place or places as M&R deems convenient, all until foreclosure, sale, lease, or other disposition of the products by M&R; (iii) sell or otherwise dispose of the products, at public or private sale in accordance with applicable law, for cash or credit at the election of M&R (but Buyer shall be credited with the net proceeds of any such sale only when said proceeds are actually received by M&R), and M&R may become purchaser at any such sale if permissible under applicable law; (iv) exercise any or all of rights accruing to a secured party under the uniform Commercial Code and any applicable law upon default by a debtor. Buyer will, if M&R requests, assemble the products and made them available to M&R at a place to be designated by M&R which is reasonably convenient to M&R and Buyer.

b. Buyer will pay M&R any deficiency that may remain after M&R credits Buyer's liabilities in the net amount of any proceeds received by M&R through M&R's exercise of any or all of its rights or with any amounts received by M&R from the sale, lease or other disposition of the products by a receiver, trustee, custodian or auctioneer. All M&R's rights under this Contract are cumulative.

c. To the extent permitted by applicable law, Buyer hereby waives and releases M&R of and from any and all liabilities or penalties for failure of M&R to comply with any statutory or other requirement imposed on M&R relating to notices of sale, holding of sale, or reporting of any sale, and Buyer waives all rights of redemption from any such sale. In the event M&R seeks to take possession of the products by replevin or other court process, Buyer hereby irrevocably waives any bonds, and any surety or security relating thereto, required by any statute, court rule or otherwise as an incident of such possession, and waives any demand for possession prior to the commencement of any suit or action to recover possession of the products and waives the right to trial by jury with respect thereto and in any action in which M&R is a party.

4. Delivery Dates

- a. Shipments of any products purchased are subject to M&R's availability schedule. M&R shall make every reasonable effort to meet any delivery date(s) quoted or acknowledged. However, M&R will not be liable for its failure to meet such date(s).
- b. M&R shall not be liable for any delay in performance hereunder due to unforeseen circumstances or due to causes beyond its control including, but not limited to, acts of nature, acts of government, labor disputes, delays in transportation, and delays in delivery or inability to deliver by M&R's suppliers.

5. Shipment, Risk of Loss and Packing

- a. All orders are shipped F.O.B. manufacturer's plant, freight collect unless otherwise agreed to by M&R.
- b. Unless otherwise agreed to in writing by M&R, all products shall be packed, if appropriate, for shipment and storage in accordance with standard commercial practices.

6. Order of Precedence

- a. These Terms and Conditions of sale and any attachments take precedence over Buyer's additional or different terms and conditions, to which notice of objection is hereby given. Acceptance by Buyer is limited to these terms and conditions. Neither M&R's commencement of performance nor delivery shall be deemed or construed as acceptance of Buyer's additional or different terms and conditions.
- b. Buyer's purchase of M&R products hereunder represents acceptance of these Terms and Conditions of Sale and any attachments, which together constitute the entire understanding between the parties and supersede any previous communications, representations, or agreements by either party whether verbal or written. No change or modification of any of the terms or conditions herein shall be valid or binding on either party unless in writing and signed by an authorized representative of each party.

7. Cancellations

If Buyer elects to cancel this order, written notice must be given to M&R within 30 days from date of M&R Acknowledgement. Buyer agrees that all down payment monies will be considered as part of liquidated damages and will be applied towards M&R's cancellation charge.

8. Acceptance of Products

Acceptance of the product(s) which are the subject of this document shall take place at M&R's factory at the conclusion of the manufacturing process. This acceptance by the Purchaser shall be accomplished and conclusively established at the time that M&R performs, and the subject equipment passes, all applicable test procedures and programs established for the equipment.

9. Patent Indemnity

M&R shall defend or settle any action or suit brought against Buyer based on an allegation that any M&R product infringes a US patent if notified promptly in writing and given assistance and the sole authority to defend or settle same at M&R's expense. M&R shall have the option to procure for Buyer the right to continue using said product; or replace same with a non-infringing product; or modify same so it becomes non-infringing; or refund the depreciated value of said product and accept return of the same. M&R shall have no liability for the infringement resulting from compliance with Buyer's designs or specifications or use of said product with products not supplied by M&R.

10. Warranty

Products manufactured by M&R may offer limited warranties from the respective manufacturer of the equipment against defects in materials and workmanship. If M&R receives notice of such defects during the warranty period, the equipment manufacturers, at their option, may repair or replace products which prove to be defective. The warranty extends to the first Buyer only and terminates if the products are transferred or sold to another entity. The foregoing warranty is in lieu of, and M&R disclaims all other warranties, express, implied, or otherwise, including, without limitation, any warranty of merchantability or fitness for a particular purpose. In no event will M&R be liable to buyer for exemplary, incidental, indirect, special, or consequential damages of any kind, including, without limitation, loss of profit, loss of use, savings, or revenue, whether or not M&R has been advised of the possibility of such loss, however caused and on any theory of liability in contract, in tort, under any warranty, in negligence, in strict liability, or otherwise, arising out of this agreement or Buyer's relationship with M&R. M&R disclaims any liability whatsoever for the Customer's environs where the equipment is to be operated and/or stored. This includes, but is not limited to, building construction, floor load, capacity of Electrical Panels or Service, atmosphere chemical content, ambient temperature and humidity content, or discharge from the exhaust plenums. Customer is solely responsible for obtaining and the expense of any Permits or Fees that may be required for the installation and operation of the equipment. M&R's liability arising out of the terms and conditions of sale and/or sale or use of the product, including without limitation, any and all claims combined, will not exceed the amount of the purchase price of the products. In no event will M&R be liable for the cost of procurement of substitute goods by Buyer or any other person or entity. Buyer hereby agrees that the price stated for the equipment is sufficient consideration in limiting M&R's liability. No action, regardless of form, arising out of the transactions under this Agreement may be brought by Buyer more than one (1) year after the cause of action has accrued.

IT IS UNDERSTOOD AND AGREED THAT SELLER'S LIABILITY FOR ANY EQUIPMENT WHETHER LIABILITY IN CONTRACT, IN TORT, UNDER ANY WARRANTY, IN NEGLIGENCE IN STRICT LIABILITY OR OTHERWISE SHALL NOT EXCEED THE RETURN OF THE AMOUNT OF THE PURCHASE PRICE PAID BY BUYER. NOTWITHSTANDING THE FOREGOING PROVISION, UNDER NO CIRCUMSTANCES SHALL SELLER BE LIABLE FOR SPECIAL, INDIRECT OR CONSEQUENTIAL DAMAGES. THE PRICE STATED FOR THE EQUIPMENT IS A CONSIDERATION IN LIMITING SELLER'S LIABILITY. NO ACTION, REGARDLESS OF FORM, ARISING OUT OF THE TRANSACTIONS UNDER THIS AGREEMENT MAY BE BROUGHT BY BUYER MORE THAN ONE (1) YEAR AFTER THE CAUSE OF ACTION HAS ACCRUED. THE WARRANTY SET FORTH ABOVE IS EXCLUSIVE AND NO OTHER WARRANTY, WHETHER WRITTEN OR ORAL, IS EXPRESSED OR IMPLIED. M&R SPECIFICALLY DISCLAIMS THE IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

11. Limitations of Remedies and Liability

The remedies provided herein are Buyer's sole and exclusive remedies. In no event shall M&R be liable for direct, special, incidental or consequential damages (including loss of profits) whether based on contract, tort or any other legal theory.

12. Miscellaneous

- a. Except as may be prohibited by the U.S. bankruptcy laws, in the event of any insolvency or inability to pay debts as they become due by a party hereto, or voluntary or involuntary bankruptcy proceeding by or against a party hereto, or appointment of a receiver or assignee for the benefit of creditors, the other party may elect to cancel any unfulfilled obligations hereunder.
- b. Any required notices shall be given in writing at the address of each party set forth in the attachments hereto, or to such other address as either party may substitute by written notice to the other.
- c. Any dispute regarding the interpretation or validity hereof shall be governed by the laws of the state of Illinois. The parties hereby agree that any dispute relating to the products sold hereunder shall be subject to the jurisdiction of the courts within the State of Illinois.
- d. Buyer agrees to pay all of M&R's costs and expenses, including attorney's fees, if M & R must bring a legal proceeding to enforce its rights hereunder.
- e. Buyer may not assign any orders hereunder without the prior written permission of M&R; any attempt to assign any rights, duties, or obligations, that arise under such orders without M&R's permission will be null and void.
- f. In the event that any of the terms and conditions hereof will be held by a court of competent jurisdiction or other tribunal to be unenforceable, the remaining terms and conditions will remain in full force and effect, provided that in such event the parties agree to negotiate in good faith substitute enforceable provisions that most nearly effect the parties' intent hereunder.
- g. Notwithstanding any other provision to the contrary, Buyer indemnifies and agrees to defend and hold M&R and any of its successors and assignees harmless from and against all claims, costs, expenses (including, but not limited to, reasonable attorney's fees), damages, losses, and liabilities of any nature whatsoever that may be imposed on, incurred by, or asserted against any such indemnified party with respect to any product or its purchase, acceptance, delivery, ownership leasing possession, maintenance, use, operation, or transportation, whether or not other parties are involved.
- h. For the avoidance of doubt, no remedy referred to in this Agreement is intended to be exclusive, but each shall be in addition to any other remedy referred to or otherwise available to M&R at law or in equity. No express or implied waiver by M&R of any default shall constitute a waiver of any default by Buyer or a waiver of any of M&R's rights, and no delay by M&R in enforcing any right or requiring performance of any provision of this Agreement by Buyer shall be a waiver of such right or effect the right of M&R to enforce such provisions.